

# Digital Repository Service

## Policies and Terms of Participation

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*Members of the Northeastern University community wishing to participate in the Digital Repository Service must review this document, agree to terms and policies concerning collections and content, and abide by such terms and policies.*

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## I. Introduction

### 1. Introduction

The Northeastern University Library's Digital Repository Service (hereafter called DRS) is a system for collecting, distributing, managing, publishing, and preserving digital (electronic) information created by Northeastern faculty, students, and staff.

The DRS is a collaboration among Northeastern librarians, archivists, technology professionals, faculty, and administrators. It includes the intellectual output of Northeastern faculty and students, including both research and teaching/learning materials. It also contains materials that document the evolution of the University's programs, activities, and policies.

It is important that all stakeholders understand and agree to the policies, guidelines, and procedures required to make the DRS a success. The terms of participation and policy statements contained in this document may be developed and modified over time.

The digital objects submitted under these terms will be deposited in the DRS for archiving and distribution for non-commercial purposes, including teaching, research, and private study. These terms do not request or require transfer of copyright to DRS.

### 2. Definitions

- Authorizing Individual: A rights holder or the representative of the rights holder of a specific digital object;
- Commercial or non-commercial purposes: use for purposes that, respectively, are or are not primarily intended to generate profits, either directly or indirectly;
- Community: Northeastern University unit or group that contributes digital material to the DRS. Examples of communities include research centers, academic or administrative departments, and student groups. Each community may assign a contact person to work with DRS staff.
- Contributor: An individual who logs into the DRS for the purpose of submitting and describing digital objects. [Note: when Contributors submit digital objects to the DRS as the agents of Authorizing Individuals, the obligations associated with submission outlined in sections II.1, II.2, and II.3 below fall on the Authorizing Individual.]
- Digital object: a file that contains digital content (an image, text, sound, video) and/or data descriptive of the content and its digital format;
- DRS: Northeastern University's Digital Repository Service;
- Federate: to bring together virtually digital objects in such a way as to allow transparent searching as if they were a single database;

## II. Terms of Participation

### 1. Participation

Participation in the DRS requires that Authorizing Individuals and Contributors comply with:

- 1.1. [Northeastern University's Policy on Acceptable Use of IT Systems and Resources](#), none of which is superseded by these terms, and by which all members of Northeastern University are bound;
- 1.2. the terms of participation and policy statements contained in this document;
- 1.3. such other University policies, and local, state, and federal laws as may be applicable.

### 2. License

- 2.1. The Contributor or the Authorizing Individual grants the DRS, on behalf of Northeastern University, a non-exclusive royalty-free right to display, reproduce, translate (as defined below), store, or archive the deposited digital objects, or to federate and incorporate them into databases containing other digital objects, worldwide in print and electronic format and in any medium, including but not limited to audio or video.
- 2.2. The Contributor or the Authorizing Individual agrees that DRS staff may, without changing the content, translate the digital objects to any medium or format for the purpose of preservation.
- 2.3. The Contributor or the Authorizing Individual agrees that DRS staff may keep more than one copy of the digital objects for the purpose of security, backup, and preservation.
- 2.4. Content for which Northeastern owns the copyright may be deposited in the DRS by Library staff.

### 3. Rights

- 3.1. Access granted by virtue of the DRS does not confer rights of any kind. The University reserves the right to amend, change or terminate the DRS at any time, with or without notice. The University retains the right to take any and all actions with respect to DRS in its sole discretion. The decision of the University in appeals regarding rejected materials is final.
- 3.2. Automated, bulk, or programmatic access to the DRS, including harvesting, scraping, or crawling of digital objects or metadata by any tool, script, or bot, is not permitted except through access mechanisms the DRS specifically provides for that purpose. The University reserves the right to rate-limit, throttle, block, or otherwise restrict any access it determines, at its sole discretion, to be automated, excessive, or disruptive to the operation of the DRS, without notice.

#### 4. The Contributor's or the Authorizing Individual's Obligations

- 4.1. The Contributor or the Authorizing Individual warrants that the necessary copyright assurances have been obtained from the creators of digital objects;

either, that the digital objects are the Contributor's original work, and that the Contributor or the Authorizing Individual has the right to grant the rights contained in this agreement, and that the digital objects do not, to the best of the Contributor's or the Authorizing Individual's knowledge, infringe anyone's copyright;  
or, if the digital objects do contain material to which the Contributor or the Authorizing Individual does not hold copyright, that the Contributor or the Authorizing Individual has obtained the unrestricted permission of the copyright holder to grant Northeastern University the rights required by this agreement, and that such third party-owned material is clearly identified and acknowledged within the text or content of the digital object. If the digital object is based upon work that has been sponsored or supported by an agency or organization other than Northeastern University, the Contributor or the Authorizing Individual warrants that any rights of review or other obligations required by such contract or agreement have been fulfilled.

- 4.2. The Contributor or the Authorizing Individual will notify DRS staff if rights to a deposited digital object are reassigned.
- 4.3. The Contributor or the Authorizing Individual bears full responsibility for any and all direct, indirect, and consequential losses arising from his or her acts of publication. The University shall have no liability to any person or entity for any losses incurred as a result of submission, nor from losses sustained as a result of failure of the University to accept, publish, or maintain a submission.
- 4.4. Use of Artificial Intelligence
- 4.4.1. The Contributor or the Authorizing Individual may use artificial intelligence (AI) tools in the creation of digital objects deposited in the DRS, provided that such use complies with all applicable University policies and any requirements of a funding or sponsoring body. Regardless of how a digital object's content was produced, the Contributor or the Authorizing Individual bears full responsibility for its accuracy, integrity, and originality, including any text, code, images, data, or other material generated or assisted by an AI tool. AI tools may not be listed as an author, creator, or contributor of a digital object.
- 4.4.2. Where an AI tool has contributed substantively to a digital object, the Contributor or the Authorizing Individual is expected to disclose this in the object's description, noting which tools were used and for what purpose. Digital objects that present AI-generated content as original research findings, observations, or data, without appropriate disclosure, are not

permitted for deposit in the DRS.

## 5. DRS Staff Obligations Regarding Digital Objects

### 5.1. DRS staff will:

- Make reasonable efforts to maintain digital objects in perpetuity, developing them as appropriate to make them available to non-commercial users;
- Make reasonable efforts to comply with and inform end users of known copyright and user restrictions pertinent to the Contributor or Authorizing Individual's digital objects;
- Clearly identify the name(s) of the author(s) or owner(s) of deposited digital objects, and shall not make any alterations, other than as allowed by these terms, to those digital objects;
- Ensure that digital objects are replaced or removed as needed to comply with claims related to the digital object's copyright and user restrictions;
- Obtain express written permission from Contributors or Authorizing Individuals to use the digital objects for any commercial purpose.

5.2. DRS staff may, without changing the content, translate the digital objects to any medium or format for the purpose of preservation.

5.3. Although due care will be taken to preserve the physical integrity of the digital objects, DRS staff shall incur no liability for the loss of or damage to deposited digital objects.

5.4. DRS staff may make storage decisions consistent with the preservation obligations described in Section 5.1 intended to manage costs, including assigning digital objects to storage tiers based on file type and expected use. Such decisions may affect the retrieval speed or response time for accessing certain digital objects.

### 5.5. Accessibility

5.5.1. The University is committed to making the DRS platform, and the digital objects it hosts, as accessible as possible to users with disabilities, consistent with the Americans with Disabilities Act, Section 508 of the Rehabilitation Act, and applicable University accessibility policies. DRS staff will make reasonable efforts to ensure the DRS platform conforms to recognized web accessibility standards and will work with Contributors and Authorizing Individuals to remediate accessibility barriers in deposited digital objects where feasible.

5.5.2. Contributors and Authorizing Individuals are encouraged, where possible, to prepare digital objects using accessible practices (e.g., descriptive alternative text for images and proper heading structures) to support the accessibility of the DRS content.

## 6. Rights and Responsibilities of DRS Participants

### 6.1. Communities' Rights and Responsibilities:

- 6.1.1. Communities and their members must agree to:
- Develop an internal submission process for the community or authorize Library staff to submit digital objects on the community's behalf;
  - Provide organization and description of digital objects as needed;
  - With assistance from Library staff, verify that submission to the DRS is allowed, when copyright holder is other than the Contributor(s) or Northeastern University;
  - Assure materials submitted comply with local, state, and federal content and privacy laws, and with the University Policy on Acceptable Use of IT Systems and Resources;
  - Observe all policies relevant to the DRS.
- 6.1.2. Communities retain the right to:
- Decide who may submit digital objects on behalf of their community
  - Receive a digital copy of submitted objects upon request
  - Request to remove objects (see section III.4);
  - Create subcommunities or collections reflecting their community structure;
  - Determine internal distribution of community-allocated space for digital objects within the DRS;
  - Limit access to their community's DRS content, when necessary, to specific individuals or groups within the University, consistent with the DRS mission of publication and access.
  - Place an embargo on downloads for a digital object, provided the embargo complies with university policies.
- 6.2. Northeastern University Library's Rights and Responsibilities:
- 6.2.1. Northeastern University Library undertakes to:
- Comply with the Library's [Privacy Policy](#) regarding storage of user data;
  - Provide guidance or assistance in establishing new communities and collections, and in submitting objects to the DRS;
  - Retain and maintain access to content submitted to the DRS;
  - Preserve digital objects deposited in collections clearly identified for preservation (see Policy on Format Support and Preservation);
  - Limit access to content according to community requests that have been approved by DRS staff;
  - Notify communities of changes to any deposited object, e.g. migration from obsolete format;
  - Return deposited objects to existing communities if the Northeastern University Library ceases to support the DRS.
- 6.2.2. Northeastern University Library retains the right to:

- Redistribute, sell, amend, or copyright metadata for digital objects in the DRS;
- Refuse content not within the scope of the DRS (see DRS Content Policies below);
- Remove content under appropriate circumstances;
- Revise the terms of participation;
- Migrate objects as necessary to preserve integrity of information;
- Set quotas (size of files, number of objects) to determine what constitutes free service and after which point to charge a fee;
- Charge a fee for activities requiring extensive centralized support from the Northeastern University Library (e.g. specialized metadata creation);
- Examine DRS system logs and records

### III. Policies on Content and Metadata

#### 1. DRS Content Policies

##### 1.1. All Digital Objects

- Objects and object descriptions must comply with local, state, and federal content and privacy laws as they may apply, and with the Northeastern University Policy on Acceptable Use of IT Systems and Resources and all other Library and University policies.
- The digital objects submitted to the DRS must be produced, submitted, or sponsored by Northeastern University faculty, staff, or students.
- Digital objects must be scholarly, research-oriented, pedagogical, or must illuminate the history of Northeastern University.
- Digital objects must have enduring value.
- Objects must be in digital format, complete, and ready for dissemination.
- The author/owner must grant Northeastern University the right to preserve and disseminate the objects via the DRS.
- If a digital object is part of a series, other digital objects in that series should also be contributed, so the DRS can offer as complete a set as possible.

##### 1.2. Object content not permitted for submission/publication to the DRS:

In addition to material types not permitted under the University Policy on Acceptable Use of IT Systems and Resources, objects with the following content are not permitted to be submitted or posted to the repository:

- FERPA-protected information, including student e-mail addresses;
- HIPAA-regulated information (protected health information), including

any information related to the past, present, or future physical or mental health of an individual, except only if the individual has authorized release of their information in writing, and such release is in the hands of the publisher;

- Content barred by law or regulation from publication;
- Intellectual property for which the Contributor does not have permission to submit and distribute;
- Non-public personally identifiable financial information of any kind; including, but not limited to, social security numbers, credit/debit card numbers, account numbers, account balances, except only where such records pre-exist as legitimate publicly accessible records outside the University;
- Photographic depictions of individuals in areas where a reasonable expectation of privacy exists, except only if all individuals depicted have given written consent to publication of their image;
- Unpublished telephone numbers and/or private residential addresses, except only if written consent for publication has first been obtained from the owner of the number and/or residential address;
- Records protected by state privacy laws. Please note that privacy laws vary by state, and protect their residents even when they are out of state.

## 2. Metadata Required for Submission to the DRS

To successfully submit a digital object to the DRS, the Contributor is required to provide a title and at least one keyword or phrase. Other metadata may be added as desired.

## 3. Metadata in the DRS

The DRS uses Metadata Object Description Schema (MODS) and Dublin Core for its descriptive metadata. Northeastern University participates in the Open Archives Initiative, an organization that promotes interoperability and enhanced access to scholarly communication. As a data provider, the DRS exposes Simple Dublin Core descriptive metadata for harvesting by institutions complying with the Open Archives Initiative Protocol for Metadata Harvesting. Once harvested, the descriptive metadata can be searched by users of OAI service providers, enabling researchers worldwide to discover content in the DRS.

## 4. Withdrawing Objects from the DRS

Northeastern University Library recognizes that occasionally it may be necessary to remove objects from the DRS. Digital objects may be removed at the user's discretion. Under some circumstances, digital objects will be removed from view, but to avoid loss of the historical record, all such transactions will be noted in the metadata, which will not be removed from view. The content of the note should be

one of the following:

- “Removed from view by legal order [date]”
- “Removed from view at request of copyright holder [date]”
- “Removed from view at Northeastern University’s discretion [date]”
- “Removed from view at Northeastern University Library’s discretion [date]”
- “Removed from view at contributor or content curator’s discretion [date]”

When a third party requests that a DRS work or collection of works be removed from the system, DRS staff will review the request with input from the content manager, content curator, or the person(s) responsible for depositing the material in the DRS. DRS staff will consider, among other things, the following:

- Does the requestor hold the copyright to the material?
- If the requestor created the material, did they grant the content manager or curator permission to use or distribute it? If so, is that permission documented in some way?
- Is the requestor asking for removal to protect their privacy?

Based on the review, the request may be resolved by:

- denying the request
- restricting access to the digital object(s) to the Northeastern community
- honoring the request and removing the digital object(s) from view, or
- honoring the request and permanently deleting the digital object(s) from the DRS

## 5. Preservation Guide

The Library’s goal is to preserve and provide long-term access to the content of the material stored in the DRS. Permanent URLs (“handles”) are assigned to all digital objects. The Library recommends depositing open-source file types where possible to ensure longevity of access to content. Guidance in this area is in the Policy on Format Support and Preservation.